

26STCP01100 26STCP01100

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-15

Motion: PETITIONER RAFAEL SILVESTRE BUENO'S PETITION FOR AN ORDER COMPELLING ARBITRATION AND APPOINTMENT OF NEUTRAL ARBITRATOR

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Case Number: 26STCP01100 Hearing Date: September 15, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

RAFAEL SILVESTRE BUENO,

Petitioner,

vs.

HISCOX INSURANCE COMPANY INC.,

Respondents.

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CASE NO: 26STCP01100

[TENTATIVE] ORDER RE: PETITIONER
RAFAEL SILVESTRE BUENO'S PETITION FOR AN ORDER COMPELLING ARBITRATION AND
APPOINTMENT OF NEUTRAL ARBITRATOR

Dept. 731

September 15, 2026

8:30 a.m.

Matter No. 18

Moving Party: Petitioner, Rafael Silvestre

Opposing Party: None

Notice: OK

Factual Background

Before the Court are Petitioner

Rafael Silvestre's (1) motion to compel arbitration of an underinsured motorist dispute relating to a motor vehicle collision that occurred in the County of Los Angeles and involved Petitioner, whose insurance provider for the collision was Respondent Hiscox Insurance Company Inc., and (2) motion to appoint arbitrator.

Petitioner's motions (made in a single filing) appear to have been properly served on Respondent Hiscox via email on counsel—though the Court notes that the record fails to reflect any appearance by Respondent, let alone a notice of appearance for any counsel for Respondent. (Compare Motion, Erzurumyan Decl., ¶¶ 7-13, Ex. B [Exhibit B showing communications with Respondent's counsel], with Motion, Proof of Service [service at same email addresses for Respondent's counsel].)

The motion remains unopposed as of this time.

Petitioner Silvestre's September 8, 2026, reply notes such a lack of opposition and adds that Respondent has agreed to arbitrate before the Honorable Greg Keosian (Ret.) but has failed to pay the fees to initiate such proceedings, with Petitioner requesting that the Court grant this motion if the parties fail to informally submit to arbitration proceedings by the time of the hearing on Petitioner's motions.

Petitioner's motions are now before the Court.

Motion to Compel
Arbitration

Legal Standard

The party seeking arbitration has the "burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence[.]" (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842.) "Once that burden is satisfied, the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition." (Lacayo v. Cataline Restaurant Group Inc. (2019) 38 Cal.App.5th 244, 257.) "The trial court sits as the trier of fact, weighing all

the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination." (Ruiz v. Moss Bros. Auto Group, Inc., supra, at p. 842.)

Discussion

i. Petitioner's

Burden

After review, the Court determines that Petitioner has failed to carry his burden to show that a valid agreement exists between the parties that requires, either by its terms or operation of law, that the matter be submitted to arbitration for resolution.

Petitioner failed to carry that burden for the simple reason that Petitioner fails to attach any copy of the parties' insurance coverage agreement. (See Motion, Erzurumyan Decl., ¶¶ 5-13, Exs. A [demand for arbitration but no copy of insurance coverage agreement], B [emails between counsel but no copy of the insurance coverage agreement]; see also Reply, pp. 1-4 [no copy of insurance coverage agreement].) This is fatal because without any copy of any insurance agreement, and with no opposition in the record, the Court would need to take Petitioner at his word regarding the existence of an insurance coverage agreement, at most relying on extrinsic exhibits in no way comprising a contract to prove the existence of such an agreement.

ii. Respondent's

Burden

Petitioner having failed to carry his burden of persuasion, the Court does not need to rule on Respondent's burden, which would not have been met for lack of opposition.

Conclusion

Petitioner Rafael Silvestre's motion to compel arbitration is accordingly DENIED.

Motion to Appoint

Arbitrator

Petitioner Rafael Silvestre's

motion to appoint arbitrator is DENIED for the same deficiencies as the motion to compel arbitration, i.e., lack of proof of valid agreement entitling Petitioner to relief requested.

Petitioner Rafael Silvestre is

ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 15, 2026 _____

MARK C. KIM

Judge of the

Superior Court